Volume XII

November/December 1994

Number # One hundred twenty-nine

Villager Tower



Mosquito Control

At the November 7th meeting, two representatives from the Metropolitan Mosquito Control Commission were present to show a video of services as well as results from their efforts. Since tires with standing water are excellent breeding sources the commission has picked up a substantial quantity of tires throughout Scott and Carver Counties. Carver's wetland areas have not been treated due to an agreement between the city and the Fish and Wildlife Services on land. However, the commission monitors the area. Some areas within the city and the Lions Park have had some treatment. The commission is attempting to persuade the Fish and Wildlife and Department of Natural Resources to allow them to treat the Carver marsh area.

Antenna

Deputy was present at the November 7th meeting to discuss new information regarding placement of antenna on the water tower. He stated that he was representing the Sheriff's Department, as well as area Fire Departments and County Highway Department. Drawings were presented depicting how the site would look from different directions. County would plant shrubbery and some crab apple trees which would be six feet high. Site is also visible from Bade Lane. Therefore, the east side would require plantings too. The shed would be hidden by shrubbery. Fence would be extended approximately eight feet. City benefits would be increased by radio reception for the Fire Department. At present request is being made for only antennas on top of the water tower. Two Fire Department representatives stated that full communication is due to poor reception. Chaska Fire Department also has problems with communications and they are of the opinion that an antenna on the Carver water tower would also be a benefit to their department. Deputy requested a resolution from the council of support to forward to land owner holding lease. Motion was made and carried by roll call vote adopting resolution supporting placement of antenna by Sheriff's Department on the water tower.



Comprehensive Plan

Council was presented with the final draft of the Comprehensive Plan at the November seventh meeting from two Planning Commission representatives. Ordinance change recommendations will be forthcoming. The mayor commented that the Comprehensive Plan should be presented to the public at a Town Meeting. Feasible date for this meeting would be in January. Discussion was held that appropriate boards review draft and have a joint meeting.

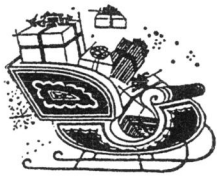
Engineer commented on importance of completion of Comprehensive Plan since Carver Bluffs is not included in present plan. Therefore, the Met Council will not allow sewer extensions without either an amendment to present plan or a new Comprehensive Plan.

City Administrator

Administrator submitted proposed contract for council review at November 7th meeting. Contract was discussed. Motion was made and carried approving agreement for interim city administrator services with attorney and council revisions. Interim Administrator, Glenda Spiotta stated intentions to apply for position. Discussion occurred regarding search for candidate if individual conducting search intended to apply. Administrator's opinion was that writing an ad and submittal of ad was not conflicting.

At the November 15th meeting, council was told of several changes to administrator agreement as a result of meeting. Motion was made and carried with all ayes approving revised agreement.

Administrator reported that she was interested in applying for position and could not conduct search. Council consensus was that an ad should be published as soon as possible. An ad was reviewed, revised and a deadline for receipt of applications set for December 15th. Decision was made to appoint two member committee to review applications.



Sixth Street

Engineer updated the council on November 7th on the status of Sixth Street. Paving or curb and gutter will be done in spring. Council member inquired about status of easement on Redmond property and also how much of the street was on said property. An easement has not been obtained, but a letter to enter has been received. Engineer discussed closing a portion of street because snow plowing and runoff would cause erosion. Residents could exit or access through Hilltop Estates. One resident voiced objection, since his taxes pay for the use of the road. The bus garages and businesses would be most affected. Another resident explained that during snow and ice storms, Fourth Street is dangerous, therefore everyone used Sixth Street. Engineer stated that something would be worked out with contractors to keep lanes open for traffic.

Engineer stated that Sixth Street bridge plans have been approved by MN Department of Transportation. Council was asked to advertise for bids. Motion was made and carried by roll call vote adopting resolution advertising for bids for Sixth Street bridge.

At the November 15th meeting, council reviewed resolution advertising for bids for Sixth Street bridge. Motion was made and carried ratifying resolution with all ayes.

Council was also informed that contractor will attempt to get first layer of blacktop on Sixth Street this year.



Public Works

Public Works director reported at the November 7th meeting regarding attending meeting at County. The only update available was that the County may go to condemnation process since a property owner was unwilling to have road go through property for TownLine Road.

Carver Bluffs

At the November 7th meeting, citizen asked the council about notification regarding construction of subdivision. Discussion was also held regarding the construction of the bridge on County Road #40 to Carver Bluffs. Citizen was told that the bridge location was a county decision.

Discussion was held regarding Carver Bluffs Developer's Agreement. Engineer was of the opinion that the developer had agreed to extend water from Sixth Street at developer's expense. However when the need arises the city would erect a water tower. Council member stated that at the last Planning Commission meeting, it was their understanding that the developer was paying for part of the water tower costs. Engineer stated that some funds would be available for an escrow account. City attorney is scheduled to meet with the developer putting agreement in black and white. Engineer was directed to attend this meeting also.

Planner for the development explained the Carver Bluffs development process and Phase II which has a small portion in Dahlgren Township. Dahlgren board members were also present at the council meeting. One board member has reviewed site commenting that it is difficult to determine where city limits end and township begins. Inquiry was made regarding gravel road installed across Kelly land. It was anticipated that road would be abandoned once project is completed. However road could be left as an emergency access until second access was completed. Council member stated that the access would be useful if fire trucks needed an access.

Township board member asked about Orderly Annexation process. Attorney responded that either the entire piece of land could be taken or pieces of property taken. Motion was made and carried with all ayes approving joint resolution for annexation as to content submitting resolution to Dahlgren Board for review.

Attorney to meet with Carver Bluffs developer to put everything in writing. Meeting time had been discussed. Tentative plans were finalized, agreement to be concluded at Park and Recreation Board Meeting.

Developer requested placement of ten model homes for spring home show. This would be discussed at a special meeting.

On November 15th, Administrator updated council on Developer's Agreement. Attorney had revised draft of agreement for council review. Architectural Form, Inc had costs for parking lot and other park improvements being installed by developer for council's review.



Inquiry was made regarding road which had been constructed for temporary access to subdivision. Current plans are to block road when subdivision is near completion. Notation was made that a water tower site would be dedicated to the city. Township board members were present at meeting, as well. One board member commented that if the road were privately owned and liability were the developer's, then it was permissible. Mayor was of the opinion that a concrete date should be set in agreement about road. Developer stated that after completion of Phase III that road could be removed.

Council was informed that the bridge over Carver Creek should be opened after Thanksgiving, but only half of bridge would be utilized until it is dedicated to the city. Curb was proposed to be installed next year. Council member asked about a gate across temporary road.

Developer said that city would be provided with letter of credit for one hundred twenty five percent (125 %) of remaining work. Council was also informed that well should be capped soon.

Development Planner met with Park and Recreation Board discussing land dedication to city for open space. Park and Boards recommendation was to reject Park "B", an eight acre passive park. Board requested Park "A" be expanded to accommodate an additional ballfield.

Discussion was held on open space land, if developer purchased more land. Said land does not have a good area for open space. Therefore, developer desired to use overage dedicated for Carver Bluff's open space applied to proposed additional purchased land. Then if another developer developed this parcel, dedication responsibility of ten percent open space would fall on said developer. If Carver Bluffs developed other land credit would not apply from Carver Bluffs.

Council member stated that time line should be set for when credit on property could be taken. Suggestion was submitted to be tied into Phase IV completion. Further discussion concluded it would be tied into Phase IV development.

Developer also would transplant some trees onto ball park after fields are laid out.

Decision was reached that final draft of Developer's Agreement should be available at the meeting of the Truth and Taxation Public Hearing. Suggestion was made that the city install water and sewer under parking lot before it is paved. Paving was scheduled for next spring, therefore city should plan for this time.

Council was presented with a copy of Homeowners Association by-laws, requesting no building permits be issued until after the proposed house is approved by the Architecture Committee of the Association. City clerk would then relay information to the building inspector.

NSP had submitted street light placement plan for Carver Bluffs. Council approved of placement of street lights. Developer would talk with NSP about types of lights.

Dahlgren Township Board has signed joint resolution for Orderly Annexation. Motion was made and carried with roll call vote of all ayes adopting resolution for Orderly Annexation.

Planning Commission

At the November 15th meeting, council was requested to review letter from a person who was interested in serving on Planning Commission. Motion was made and carried with all ayes appointing Jon Allan Stone to the Planning Commission.

Miscellaneous

Council discussed special meeting for convassing votes. Meeting was held November 9th to canvass votes.

Council discussed necessity to schedule special meeting to review budget, developers agreement joint annexation and administrator search issues. Meeting was scheduled for November 15th.

Carver/Scott Cooperative students will be doing a survey on possible uses for the Church-By-The-River building.

Administrator was directed to deal with Tax Increment Financing on the Commercial/Industrial Park.

Request was made to reinstall gate at River Side Park.

Resident inquired about availability to themselves of natural gas or cable like other residents within the city. Statement was made that city does not have contract with the cable company. Only permission was granted to operate within city, but the city can not dictate where cable is installed. Mayor also stated that the city has no control over utilities. Suggestion was submitted to request service from companies.

Council reviewed 1995 proposed budget on November 15th.

Council scheduled Town Meeting for January 9th, 1995 at 7:00 PM to present Comprehensive Plan to community at Public Hearing.

Administrator reported to council regarding work to be done on FEMA (Federal Emergency Management Agency). Motion was made and carried requesting an extension for work to be completed on the request for mitigated FEMA funds.

Park Lease

Council was informed at the November 7th meeting that the Lions had discussed a Lease Agreement for the corner lot by Broadway and Third Streets for use of a park with Carver-On-The-Minnesota. Motion was made and carried to enter into an agreement with Carver Lions and Carver-On-The-Minnesota for a park at the corner of Broadway and Third Street East.

Council was told on November 15th that all parties involved have approved of the agreement and plans are being drawn up for consideration at the Lions meeting for a park on corner lot.

Municipal Utilities

City Engineer reported on finding to get water filtration plant operational at the November 7th meeting. Total estimated cost would be $190,000. Several options for financing would be General Obligation Bonds, hook up fees or surcharge on utility bills.

Municipal Utilities operator reported that no bids had been received for putting roof on filtration plant. Council member inquired about certainty of using tank in plant if roof were constructed. Operator responded that tank could be cut up. Discussion was also held regarding placement of equipment. Motion was made and carried authorizing operator to put roof on filtration plant.

Council discussed water meter billing system. Consensus was that not enough data was available to warrant decision to attain this system. Proposed system was expensive and questionable if necessary due to the size of the present system. Administrator was directed to draft comparison report for review. Council decided current meter system be ordered for new construction.

Operator informed council that most newly constructed homes in Eagle Ridge and Carver Bluffs need pressure reducing valves.

Council was also told contract for '95 would be increased. Council member requested increase justification report be submitted.

Council member stated that they'd prefer postponing roof construction on water filtration at the Novemer 15th meeting. Member would like more information on purchase of a new tan. Issue was discussed. Decision was made to put tarp over roof area until decision could be made. Motion was made and carried with all ayes to further investigate tan condition and postpone roof construction at filtration plant. Administrator was directed to work with engineer on issue.

Annexation Petition

James Kelly informed the council at the November 7th meeting that the family still possessed thirty four acres in Dahlgren Township which would become surrounded by city property on three sides. Petition was made for annexation by ordinance. Board member questioned intent for use of land. Response was given to develop since property is prime development land. Council members opinion was that Kelly should approach township to discuss plans for property prior to council calling Public Hearing for annexation request. Board member expressed concern about piecemeal annexation and two property owners who would also be surrounded by city on three sides. Motion was made and carried with all ayes tabling request for annexation until petitioner met with Dahlgren Board.

At the November 15th meeting council was informed that Kelly had attended Dahlgren Township Board meeting regarding annexation of land. Board had not approved nor disapproved request. The mayor stated that request could be simpler after completion of Comprehensive Plan. Board members were concerned about access onto County Road #40 since property only has small amount of frontage. Kelly had no comment, except there are plans for development of property.

Conditional Use Request

At the November 7th meeting council member reported reviewing the background for request for Conditional Use Permit. Public Hearing had been held on issue by Planning Commission. One concern discussed was additional truck traffic on Sixth Street. Comment was also made that if any semi-trailers were parked on proposed sales lot, these trailers would be empty. Motion was made and carried with roll call vote approving resolution granting conditional use permit for bus garage. Resident commented that upon purchase of home in area that the garage present was a bus garage. Citizen did not have a problem with this, however, it was his opinion that a new business should not be added in area and that a new business should be located downtown.

City Flag

At the November 15th meeting, the council was informed that the Park and Recreation Board reviewed drawings for a proposed city flag created by Ken Forner. The Board approved the concept and recommended that the council approve proceeding with the project. Council consensus was to proceed with the project.

Carver-on-the-Minnesota

Carver-On-The-Minnesota members discussed the agreement for the park lease on the corner lot of Broadway and Third Streets. There was also discussion to construct a gazebo and put park benches in the area. Three members were appointed to collaborate with the Carver Lions on the design of the park.

Group discussed renovation of the Church-By-The-River as well again. The members are working with the Scott/Carver Co-operative students to refurbish and restore the historical church. Anyone interested in participating is welcome. Contact Cindy Monroe for details at 448-4760.

Group discussed membership drive. Organization is always promoting new membership. If interested, again contact Cindy Monroe or Barb Swanson. The group is need of a Secretary and a Treasurer.

House tours will be in conjunction with the Annual Victorian Garden Park which will be held June 24th, 1995. Anyone interested in having their home included on the tour route are to contact Cindy Monroe or if you need details.

The meeting night has ben changed to the second Thursday of the month. The group will meet again December 8th, 7:00 PM at Dorothy Bezdecheck's home which was formerly the Carousel Rose Inn. All are welcome to attend and to join. Any questions, call Cindy.

Carver Lions

The Carver Lions will have their Christmas Party on December 7th, 1994. All perspective members are welcome to attend.

The Carver Lions have taken on the project of remodeling the Village hall basement. Work has already begun.

Election Results

City of Carver:

New Mayor - Mike Terry (Two Year Term)
Re-elected - Vickie Peterson (Four Year Term)
Council - Daniel Robb (Four Year Term)



Disclaimer

The preliminary unapproved minutes from the City of Carver's council meetings were referenced to compose the Villager Tower.

SANDY'S
Quilts & Crafts
1520 County Road 40
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448-7492

Saturdays
10:00 - 2:00
December 3rd - 24th

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Carver, Mn

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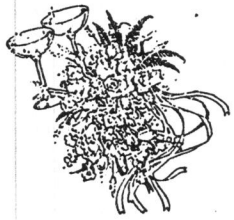
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Fire Department Highlights and Community Calendar

December 1994

December 1st - Chaska Middle School - Band Concert
School Board Meeting
December 4th - Happy Birthday Patti!
December 5th - Council Meeting 6:30 PM
Cub Scouts Meeting
Drill Night With Chaska Fire Department 6:00 PM
December 6th - Happy Birthday Tommy Lee!
December 7th - Lions Meeting
Lions Christmas Party
December 8th - Chaska Middle School Band Concert
Carver-On-The-Minnesota 7:00 PM
December 12th - Park and Recreation Board Meeting
Chaska High School/Conferences
December 13th - Chaska High School Band Concert
Chaska Middle School Choir Concert
December 15th - Carver-On-The-Minnesota Meeting
Heritage Preservation Commission
Chaska High School/Conferences
December 17th - **Santa Coming to Village Hall!!!**
Scheduled Arrival Time - 1:30 PM
December 19th - Cub Scouts Meeting
Chaska High School Choir Concert
Drill Night 6:30 PM
December 20th - Chaska Middle School Choir Concert
YellowStone Raccoons 4-H Meeting
December 21st - Lions Meeting
December 22nd - Happy Birthday Sandy!
December 23rd - No School
December 24th - Christmas Eve
December 25th - Christmas Day!
Merry Xmas
December 26th - Winter Break/No School
December 27th - Planning Commission Meeting
December 29th - Happy Birthday Miranda!!
Meeting Night 8:00 PM
December 31st - New Year's Eve

LIONS INTERNATIONAL

Carver Lions

Meet 1st and 3rd Wednesday
of each month



Tentative Agenda

Submitted by the City of Carver

December 5 1994
6:30 PM

1) Call to Order
2) Approve Agenda
3) Approve Minutes
4) Approve List of Claims
5) Petitions from Residents
6) Joint Meeting/Comprehensive Plan
7) Dog Catching Agreement
8) Engineer Report
9) Municipal Utilities Report
10) City Flag
11) December Newsletter
12) Fees Resolution
13) Administrator Report
14) Other Business
15) Adjourn